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Concurring Opinion, *Zadvydas v. Davis*, 533 U.S. 678 (2001)

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Zadvydas v. Davis, 533 U.S. 678 (2001)

Justices Stacy Caplow and Maryellen Fullerton, concurring in the judgment.

We agree with Parts I, II, and IIIA of Justice Breyer's opinion and we concur in the judgment. We believe that the statute at issue here, 8 U.S.C. § 1231(a)(6), as written and as applied, is unconstitutional so long as it permits indefinite detention of noncitizens ordered removed from the United States when the Government lacks the ability to carry out the removals. The Due Process Clause prohibits civil proceedings that result in the equivalent of life imprisonment due to conditions beyond the ability of noncitizens to control. The lack of procedural safeguards in the statute itself magnifies the constitutional defect. The statute's constitutional flaws are not cured by reading procedural conditions into the statute. Accordingly, we would strike this statute as unconstitutional and order the release of those confined pursuant to it who cannot be removed.

This view does not command a majority of the Court, however. The need to give practical effect to the members of the Court rejecting the Government's position, therefore, compels us to join with our colleagues to order remand on terms closest to those we would impose. *See Screws v. United States*, 325 U.S. 91, 134 (1945) (Rutledge, J., concurring in the result). Although we would overturn 8 U.S.C. § 1231(a)(6), Justice Breyer makes a strong case that implicit temporal limitations permitting continued detention only for a period reasonably necessary to carry out removal could save the statute from unconstitutionality. We also support Justice Breyer's view that detention after six months is presumptively unconstitutional, and we appreciate his effort to salvage the statute by requiring reviews at six-month intervals to determine whether the Government has sufficient evidence that removal can be accomplished within a reasonably foreseeable time period.

We nonetheless believe this practical solution does not adequately protect against indefinite detention, even though this approach is likely to prevent some instances of serious harm. We take this opportunity to explain why we believe the harm inflicted by a statute that allows noncitizens to remain imprisoned even when they cannot be removed from the United States far outweighs any legitimate government goal.

I

A preliminary observation about language

Before beginning our analysis, we offer a preliminary observation about language. We note with regret the language used by the immigration statutes and repeated by our colleagues. The statute refers to immigrants as "aliens," 8 U.S.C. § 1101(a)(3) ("any person not a citizen or national of the United States"), a frequent synonym for outsider, stranger, barbarian, intruder, squatter, interloper, or invader. *See Alien*, *Webster's New Pocket Thesaurus* (2000). Frequently, adjectives like "illegal" or "criminal" intensify this pejorative term. We believe that this demeaning language fuels unjust policies, such as those proffered by the Government in this case. These labels erase the humanity of the individual who may be a neighbor, classmate, fellow parishioner, or co-worker. They imply that individuals who are not United States citizens are a wholly different species, rather than a human being living next door or on the next block. Further, this debasing

language perpetuates the myth of the immigrant as “other” and as lawbreaker despite the absence of evidence that immigrants in the United States have higher rates of criminality than United States citizens. To avoid perpetuating these negative stereotypes, we employ different vocabulary.

II

The stateless cannot be removed

The cases today remind us that there are, residing within our borders, large numbers of people who lack the right to be members of any political community. The stateless have no homeland; no country assumes the responsibility to accept and protect them. Statelessness is not a rare status; the Office of the United Nations High Commissioner for Refugees (UNHCR) estimates there are millions of stateless individuals around the globe today. UNHCR, *The State of the World's Refugees: A Humanitarian Agenda* ch. 6 (1997). A significant international problem, statelessness is the subject of several international treaties. Convention Relating to the Status of Stateless Persons, Sept. 28, 1954, 360 U.N.T.S. 117; Convention on the Reduction of Statelessness, Aug. 30, 1961, 989 U.N.T.S. 175. Nor is statelessness a new concern in the United States. Almost fifty years ago our Court called statelessness “a condition deplored in the international community of democracies.” *Trop v. Dulles*, 356 U.S. 86, 102 (1958).

Its causes are manifold—the dissolution of nations, war, and ethnic strife, gender discrimination in citizenship laws, administrative barriers to registering births, nomadic lifestyles, and more. Its human impact is widespread. Since the 1980s a major hallmark of the ongoing oppression of almost two million Rohingya people in Myanmar has been their statelessness. UNHCR, *supra*, ch. 6, at 6. In recent years, the dissolution of the Soviet Union in 1991 and Yugoslavia in 1992 left hundreds of thousands of people stateless. *Id.* at 7–10. Warfare in Kuwait during the early 1990s dispersed some 250,000 Bidoon, causing long-term statelessness. *Id.* at 6.

Many stateless individuals have created new lives in our country but find themselves without any legal basis for remaining and no country where they can return. *See, e.g., I.N.S. v. Chadha*, 462 U.S. 919, 929 (1983) (student in the United States born in British colony of Kenya to Indian parents lacked citizenship in India, the United Kingdom, or Kenya after Kenyan independence). Many, like Kestutis Zadvydas, are not even aware of their lack of nationality until they run afoul of our immigration laws and are ordered removed from the United States.

The individuals before this Court are living examples of the harsh impact of a statute that imprisons the stateless indefinitely in order to remove them from the United States, despite the fact that removal is impossible because no country will receive them. But they are hardly alone or unique. Congress failed to realize that large numbers of stateless and functionally stateless individuals, including longtime lawful residents, could be detained indefinitely under the terms of the statute. This is fundamentally unfair and amounts to punishment for their stateless status. Consequently, we are compelled to state clearly that this statute’s authorization of indefinite detention untethered to any consideration of the likelihood of eventual removal violates both substantive and procedural due process.

A

As a stateless person, Kestutis Zadvydas cannot be deported. Born in a displaced persons camp in the maelstrom of post-war Europe, he lacks citizenship in Germany, where he was born; in Lithuania, where his parents may have been citizens; or in the United States, where he has lived as a lawful permanent resident for three decades, married, and raised a family. He led a seemingly uneventful life, punctuated when he was a teenager and a young man in his early twenties by two run-ins with the law. Two decades later he was convicted of a cocaine charge, served two years in prison, and was released on parole. Immigration officials arrested him upon his release from prison and held him without bond as they began proceedings to remove him from the United States. Unrepresented by counsel, he did not challenge his deportation and was ordered removed from the United States. To his surprise and the consternation of immigration officials, neither Germany nor Lithuania viewed him as a citizen. Now a grandfather, after 35 years as a lawful permanent resident of the United States, he discovered that he is stateless.

Zadvydas did not contest the Government's efforts to remove him from the United States. Indeed, he cooperated at every turn. Despite speaking only English, he volunteered to return to Germany, the land of his birth. He applied to return to Lithuania, the country where his parents had lived half a century earlier. He even followed INS instructions and twice applied for citizenship in Lithuania, only to be rejected.

Immigration officials argue that Congress authorizes them to detain Zadvydas permanently under the guise of effectuating his removal, despite the absence of evidence that removal will ever be possible. Countries are generally unwilling to accept deportees who are not their citizens. For example, immigration officials unsuccessfully sought to deport Zadvydas to the Dominican Republic, the homeland of his wife. Pet'r Zadvydas's Br. 6. Thus, this post-removal-period detention statute impermissibly consigns Zadvydas, and many other stateless individuals, to indefinite detention.

B

Some members of the American community are functionally, though not technically, stateless. Kim Ho Ma is one of them. His parents fled Cambodia and its genocidal leaders in 1979. After years in refugee camps, the United States granted them refugee status. The family entered the United States when Ma was only six, and they eventually became lawful permanent residents. As a teenager in a poor neighborhood, Ma joined a Cambodian gang. This misguided choice led him to a violent encounter at age seventeen and a subsequent gang-related manslaughter charge. He was convicted and sentenced to three years in prison. Prison officials released him after two years based on his good behavior. Two decades after Ma arrived as a refugee child, the United States ordered him returned to Cambodia. Cambodia, which hemorrhaged refugees in the Khmer Rouge years, has no repatriation agreement with the United States; it refuses to accept Ma or any other Cambodian national.

Both Zadvydas and Ma received an early release from their criminal sentence based on good behavior. Both Zadvydas and Ma remained imprisoned for the purpose of deportation far longer than for their criminal convictions. Both Zadvydas and Ma remain in the United States because

they fall through the cracks of the nation-state system. Since no country will accept them, they face indefinite—maybe permanent—detention in the United States.

C

We emphasize that the harm caused by this statute is not limited to one or two rare cases. Immigration officials have relied on this removal detention statute to hold thousands of human beings in jail even though removal is impossible. *See, e.g., Supreme Court Hears Arguments in Indefinite Detention Cases*, 78 Interpreter Releases 397 (2001) (approximately 3,000 currently subject to indefinite detention).

Some of them are from countries such as Cuba that lack diplomatic relations with the United States. *See* William G. Mayer, *Trends: American Attitudes Toward Cuba*, 65 Pub. Op. Q. 585, 588–590 (2001). Some of them are from nations like Laos, Cambodia, and Vietnam that have not entered repatriation agreements with this country. *See Ma v. Reno*, 208 F.3d 815, 821 (9th Cir. 2000). Some of them are from countries, for example, Somalia, undergoing such chaos and conflict that government functions have ground to a halt. *See* U.S. Dep’t of State, *Country Report on Human Rights Practices 2000 – Somalia* (2001) (U.S. has no diplomatic representation in Somalia, where there is no functioning central government). Some of them cannot be removed because they are likely to face torture if they return to their home countries, yet our laws authorize their detention. 8 C.F.R. § 208.17(c). We recognize that some of the varied circumstances that prevent removal may disappear someday, but the mere possibility of change in the future cannot justify long-term detention.

Stateless and functionally stateless individuals exist in carceral limbo in deplorable conditions for extended periods of time. In many instances, they are treated far worse in immigration detention than those serving criminal sentences in the same facility. CLINIC Br., *supra*, 11. They also endure worse conditions than they experienced at the prisons where they had earlier served their criminal sentences because they are isolated and inaccessible to family and counsel. *Id.*, 8, 11.

Zadvydas endured his prolonged inhumane incarceration for more than three and one-half years, far longer than his incarceration for cocaine use. During that time, he was confined to his cell twenty hours each day and permitted only two hours of exercise each week. Pet’r Zadvydas’s Br. 16. Ma spent almost two and one-half years in immigration detention after two years in prison. *Ma v. Reno*, 208 F.3d 815, 819 (9th Cir. 2000).

Many similar stories were provided by *amici curiae*. For example, Thanh Cao Nguyen, a permanent resident of the United States, was ordered removed to Vietnam, which lacks a repatriation agreement with the United States. Nguyen was detained for removal for more than three and one-half years before immigration officials reviewed his indefinite detention. Although his family resides in California, Nguyen was transferred to five separate facilities, including locations in southern California, northern California, Minnesota, and Florida. In Florida, far from his support network, he was one of a small number of immigration detainees held in Coleman state prison. There prison officials detained him for administrative—not disciplinary—reasons in isolation under 23-hour lockdown for one year. He had limited access to telephone, legal materials,

and recreation facilities. His attorney, though she had received advance permission from prison officials to visit, was denied access after traveling four hours to the prison. Ultimately, the attorney was able to meet with Nguyen for only twenty minutes to prepare an application for release from detention. *Br. of Catholic Legal Immigration Network, Inc. (CLINIC), et al., as Amici Curiae Supporting Resp't Ma 4–5, Reno v. Ma*, 208 F.3d 815 (9th Cir. 2000).

Julio Martull-Garcia, a permanent resident of the United States, has been in immigration detention for more than five years because he is a citizen of Cuba, which refuses to accept individuals removed from the United States. After four years of detention, he requested release, but was rejected in a letter noting only that release was not “warranted at this time.” One year later, he requested an interview relating to his continued custody. He submitted letters from jail staff reporting that he “displayed excellent behavior,” had no disciplinary reports, volunteered to tutor ESL students, and completed an alcohol treatment program. He also verified that he has four children who are U.S. citizens and need his support. Immigration officials did not respond to this request for release. *CLINIC Br., supra*, 5–6.

Jose Fernandes, a permanent resident of the United States from Angola, came to the United States as a child and settled in Rhode Island with his extended family. He became addicted to drugs which led to a criminal conviction and prison sentence. In prison, he completed multiple training programs, was an active participant in the Relapse Prevention/Drug Education Group, and joined a workshop on Alternatives to Violence. When placed in immigration detention and ordered removed to Angola, Angola refused to issue him travel documents. Though he pleaded with Angola, Portugal, and the Cape Verde Islands to accept him so he could escape from lifelong immigration detention, they all refused. He remained in prison for the purposes of removal for three years. *Br. of the American Association of Jews from the Former USSR et al., as Amici Curiae Supporting Resp't Ma 16–17, Reno v. Ma*, 208 F.3d 815 (9th Cir. 2000).

These are only a few examples of how indefinite detention has torn apart immigrant families, particularly of refugees from Cambodia, Vietnam, Laos, and Cuba. *See id.* 7. With little choice but to flee the countries where they were born, many did so after assisting the U.S. Government. Most of these refugee families have built successful new lives in the United States, but their families are not immune from the problems that face all American communities. *Id.* 10–11. Many of them or their sons and daughters are the human beings locked up indefinitely after they have been ordered removed.

III

Due process violations

The cases before us concern the statutory framework for detaining and deporting noncitizens from the United States. Briefly put, the immigration laws of the United States authorize the removal of noncitizens on a staggering 130 enumerated grounds. *See, e.g.*, 8 U.S.C. § 1182(a); 8 U.S.C. § 1227(a). Once a noncitizen is subject to a final order of removal, the Government generally detains the noncitizen during the 90-day removal period prescribed by statute. 8 U.S.C. § 1231(a). Detention is mandatory for noncitizens ordered removed on criminal or security grounds; it is discretionary for all others. 8 U.S.C. § 1231(a)(2). We note that mandatory detention

applies in the removal period even if the criminal sentence did not impose any form of incarceration. If the Government cannot carry out the removal within ninety days, Congress authorizes a longer period of detention (“post-removal-period detention”) in alternative circumstances: (1) noncitizens ordered removed on criminal or security grounds and all noncitizens who are inadmissible, as well as those who violated their nonimmigrant status or conditions of admission (known as “the disfavored groups”), (2) noncitizens determined by the Attorney General to be a risk to the community or a flight risk. 8 U.S.C. § 1231(a)(6). Any noncitizen determined to be a flight or public safety risk can be detained longer than ninety days; noncitizens in the disfavored groups can be detained even longer whether or not they pose these additional risks. Despite the long-term incarceration that the statute permits, it is silent about how the need for continued detention should be decided.

To the extent that this statute authorizes indefinite post-removal-period detention when the Government lacks the ability to effectuate the removal, the statute violates established principles of substantive due process.¹ To the extent that this statute authorizes post-removal-period detention without fair procedures to challenge the basis of the detention, it also violates procedural due process. We discuss each of these constitutional defects in turn.

A

Justice Breyer states that “[a] statute permitting indefinite detention of an alien would raise a serious constitutional problem.” *Ante*, at 690. Even Justice Kennedy, in dissent, acknowledges that “a substantial constitutional question is presented by the prospect of lengthy, even unending, detention in some instances.” *Post*, at 706. We wholeheartedly agree. When removal detention rests on the unsubstantiated hope that removal from the United States may someday be possible, the Government’s action runs afoul of the Due Process Clause on two grounds. First, it is fundamentally unfair to continue to detain a person when the justification for detention disappears. Second, ongoing detention, in those circumstances, becomes solely punitive.

1

The Due Process Clause protects the liberty interests of all persons, including noncitizens, in the United States. *Wong Wing v. United States*, 163 U.S. 228, 238 (1896). The right to be free from physical custody is the paramount liberty interest. *E.g.*, *Foucha v. Louisiana*, 504 U.S. 71, 80 (1992); *Youngberg v. Romeo*, 457 U.S. 307, 316 (1982). And the substantive component of the Due Process Clause bars “arbitrary, wrongful government actions ‘regardless of the fairness of the procedures used to implement them.’” *Foucha*, 504 U.S. at 80 (quoting *Zinermon v. Burch*, 494 U.S. 113, 125 (1990)). Yet, the statute in question allows detention in prison-like facilities of broad groups of noncitizens even when there is no realistic likelihood of removal from the United States.

It is fundamentally unfair for the Government to detain people for the purpose of removal and to continue to detain them when the Government knows removal is impossible. In authorizing the indefinite detention of individuals who cannot be removed, Congress has ignored their

¹ We note also that prolonged arbitrary detention is contrary to international law norms as well as prohibited by the International Covenant on Civil and Political Rights, Dec. 19, 1966, 999 U.N.T.S. 171, ratified by the United States in 1992.

fundamental liberty interest and has violated their right to due process. The violence inflicted by the Government's interpretation of 8 U.S.C. § 1231(a)(6) is particularly egregious when it falls on individuals, like the ones here, who have spent the majority of their lives as lawful residents of the United States.

Although Justice Breyer acknowledges the apparent unconstitutionality of the statutory text, he concludes that Congress must not have meant what the statute's words say. Accordingly, he relies on the doctrine of constitutional avoidance to construe the statute to include an implicit "reasonable time" limit on detention. *See Gomez v. United States*, 490 U.S. 858, 864 (1989) (explaining that courts must "avoid an interpretation of a federal statute that engenders constitutional issues if a reasonable alternative interpretation poses no constitutional question"); *see also United States v. Witkovich*, 353 U.S. 194, 201–02 (1957) (quoting *Crowell v. Benson*, 285 U.S. 22, 62 (1932)). He reads the statute to include an implicit requirement of hearings at six-month intervals to determine whether removal is likely in the "reasonably foreseeable future." *Ante*, at 699. We agree with the concerns addressed by Justice Breyer but are not persuaded by his reliance on the constitutional avoidance doctrine in this case.

The doctrine of constitutional avoidance comes into play when a court faces two statutory interpretations of equal plausibility. In such a circumstance, the court should choose the statutory construction that avoids confronting a constitutional question. *Crowell*, 285 U.S. at 62. This doctrine does not, however, allow a court to interpret a statute in a manner that is contrary to congressional intent. *See United States v. X-Citement Video, Inc.*, 513 U.S. 64, 78 (1994). In our view, this doctrine is not applicable here. The text of 8 U.S.C. § 1231(a)(6) is clear; Congress unambiguously authorizes post-removal-period detention without a time limit. We see nothing in the language, structure, or purpose of the statute that either explicitly or implicitly forbids indefinite detention.

Accordingly, we must review the terms of the statute that Congress actually wrote. The Government relies on 8 U.S.C. §1231(a)(6) to detain noncitizens for removal even though the Government does not anticipate being able to carry out the removal. In the cases before us, and in many others, this form of post-removal-period detention has extended for multiple years even when there is no removal date in sight. Continuing to detain individuals indefinitely for a removal that is not reasonably foreseeable violates substantive due process.

2

This statute, as interpreted and applied by the Government, accomplishes a significant—and unconstitutional—sleight of hand. A detention scheme that begins as part of a civil regulatory effort is allowed to transform itself—without any intervening judicial factfinding or oversight—into an essentially punitive long-term sentence. The immigration removal system designed by Congress envisions a relatively brief period of detention for the purpose of carrying out the removal of noncitizens from the United States. Punishing noncitizens for the Government's inability to achieve its objective is not part of the legislature's intention. Yet, punishment is exactly what ensues. Moreover, this punishment takes place despite our jurisprudence holding that the Due Process Clause forbids punishment of noncitizens for civil immigration violations. *Wong Wing v. United States*, 168 U.S. 228, 237 (1896).

7

It is true that noncitizens, like citizens, can be punished for crimes in criminal proceedings. It is also true that noncitizens can be deported from the United States in civil removal hearings. But our case law has steadfastly held that deportation, though it can result in grievous loss for noncitizens and their families, is *not* punishment.² See, e.g., *Fong Yue Ting*, 149 U.S. 698, 730 (1893); *Harisiades v. Shaughnessy*, 342 U.S. 580, 594–95 (1952); *INS v. Lopez-Mendoza*, 468 U.S. 1032, 1038 (1984). Deportation has long been viewed as a civil matter, and any consequent incarceration is also deemed a civil or administrative issue, justified only for the purpose of removing noncitizens from the United States.

The record in the cases before us reveals, however, that their “civil” incarceration subjected Zadvydas and Ma to the same loss of autonomy and confinement as a criminal sentence. Ironically, their prolonged immigration detention had none of the accompanying opportunities for rehabilitation that can accompany incarceration for those convicted of crimes. Because the immigration detention system has been established to remove individuals from the United States promptly, it is not surprising that training and rehabilitation programs are lacking. Nonetheless, the absence of support services in immigration detention intensifies the negative experience of life behind bars.

Our cases are clear that detention to carry out a regulatory objective is necessarily conditioned on time limitations or narrowly tailored specific circumstances. *Reno v. Flores*, 507 U.S. 292, 314 (1993) (“The period of custody is inherently limited by the pending deportation hearing”); *Kansas v. Hendricks*, 521 U.S. 346, 357 (1972) (“The statute thus requires proof of more than a mere predisposition to violence; . . . [w]e have sustained civil commitment statutes . . . with the proof of some additional factor”); see also *United States v. Salerno*, 481 U.S. 739, 747–48 (1987) (“The Bail Reform Act carefully limits the circumstances under which detention may be sought [A]nd the maximum length of pretrial detention is limited by [] stringent time limitations”).

In the cases before us, the detention is initially justified by the Government’s interest in removing noncitizens who have committed conduct Congress has categorized as grounds of deportability. The 90-day removal period allows the Government to make arrangements with other countries to effectuate the removals. The post-removal period detention might be justified in instances when the Government foresees removal but has encountered logistical obstacles. The statutory text, however, puts no limit on the length of the post-removal period detention, and the Government insists that Congress has authorized indefinite detention of noncitizens ordered removed, even if removal is not possible. This is the point at which the regulatory justification for detention evaporates and continued detention becomes punitive.

Accordingly, this form of immigration detention must be acknowledged as punitive, and, as we discuss below, cannot be imposed without the due process protections associated with criminal matters. See *Kennedy v. Mendoza-Martinez*, 372 U.S. 144, 168–69, 186 (1962). Indicia of punishment are present here: (1) an affirmative disability or restraint that is (2) disproportionate to the regulatory purpose assigned. *Id.* Moreover, the conditions of confinement experienced by

² Although this aspect of our jurisprudence has generated debate, the parties have not raised this issue, and we leave a careful evaluation of this characterization to another day.

post-removal-period detainees confirm its punitive nature. Not only are the noncitizens in question deprived of their fundamental liberty but also they are subjected to conditions of confinement that are frequently substandard and even abusive. As detention here is incidental to removal, the observation in *Kennedy v. Mendoza-Martinez*, that “forfeiture of citizenship and the related devices of banishment and exile have throughout history been used as punishment,” is particularly cogent. *Id.* at 168 n.23.

Many “INS lifers” have been held in jails or prisons for years, have been transferred multiple times, and frequently have been stranded in parts of the country at great distances from supportive family. Others have been detained in facilities where they have faced inhumane conditions. See Human Rights Watch, *Locked Away: Immigration Detainees in Jails in The United States* (1998) (describing frequent transfers; use of disciplinary sanctions; lack of clothing and supplies; poor medical, dental, and psychological health; and physical mistreatment). These detainees, with no power over the countries that refuse to admit them, are warehoused behind bars and treated like prisoners for indefinite, potentially lifelong periods. There is no legitimate government interest that justifies this treatment.

It is both excessive and even irrational to detain noncitizens beyond the 90-day removal period when the Government cannot remove them. The indefinite detention authorized by Congress in 8 U.S.C. § 1231(a)(6) is disproportionate to its regulatory purpose when there is no prospect of removal in the reasonably foreseeable future. Thus, it amounts to punishment. Accordingly, the Due Process Clause prohibits the Government from continuing to detain Zadvydas and Ma and the other similarly situated individuals.

B

Because we conclude that detention pursuant to the post-removal-period detention statute can become punitive, we must examine whether the detention determinations are made with the procedural safeguards appropriate for such weighty decisions. The statute that authorizes post-removal-period detention is devoid of any procedural safeguards. The Government argues that implementing regulatory and administrative policies, which grant immigration officials unreviewable discretion to decide whether a noncitizen falls within the terms of the statute, provide sufficient procedure. We disagree. When physical custody is at stake, an opaque process that vests unreviewable discretion regarding detention in the same officers charged with enforcing the law is suspect. There must be fair and transparent processes for deciding whether there is a realistic chance of removal and for deciding whether noncitizens in post-removal-period detention constitute flight risks or public safety risks, as outlined in 8 U.S.C. § 1231(a)(6). We will discuss each of these in turn.

1

For more than half a century our precedents have been clear: the Due Process Clause does not allow government officials to deprive individuals of their liberty via processes that lack a meaningful opportunity to be heard by an independent decisionmaker. See, e.g., *Goldberg v. Kelly*, 397 U.S. 254 (1970); *Mathews v. Eldridge*, 424 U.S. 319 (1976). The Government must provide fair hearings for the termination of welfare payments, *Goldberg v. Kelly*, 397 U.S. at 261, for the elimination of disability benefits, *Mathews v. Eldridge*, 424 U.S. at 332–33, for school suspensions,

Carey v. Piphus, 435 U.S. 247, 266–67 (1978), for employment decisions, *Arnett v. Kennedy*, 416 U.S. 134, 151 (1974), and indeed for all decisions in which an individual’s liberty or property is potentially at risk, *Wolff v. McDonnell*, 418 U.S. 539, 557–558 (1974). The process to decide whether imprisonment should be extended must provide—at minimum—adequate notice, a meaningful opportunity to be heard at a meaningful time, and an impartial decisionmaker.

To implement 8 U.S.C. § 1231(a)(6), the Government initially created a cursory two-paragraph regulation stating that the INS District Director can continue detention beyond the removal period in his or her discretion unless noncitizens can show by clear and convincing evidence that there is no danger to the community or flight risk. Inspection and Expedited Removal of Aliens; Detention and Removal of Aliens; Conduct of Removal Proceedings; Asylum Procedures, 62 Fed. Reg. 10,312, 10,378 (Mar. 6, 1997) (codified at 8 C.F.R. § 241.4). The regulation provided no opportunity for the noncitizen to receive notice of the District Director’s decision-making process and no opportunity for the noncitizen to present evidence and discover and challenge the Government’s submissions. Apparently recognizing the inadequacy of this statutory and regulatory approach to potential long-term detention of individuals in U.S. custody, various internal INS documents set forth rudimentary procedures for determining continued detention under 8 U.S.C. § 1231(a)(6). *See, e.g.*, Michael Pearson, Exec. Assoc. Comm’r, Off. of Field Operations, INS, Memorandum on Detention Procedures for Aliens Whose Immediate Repatriation is Not Possible or Practicable (Feb. 3, 1999), Press Release, Doris Meissner, Comm’r, INS, New Mandatory Review Policy for INS Long-Term Detainees (Apr. 30, 1999), and Michael Pearson, Exec. Assoc. Comm’r, Off. of Field Operations, INS, Memorandum on Interim Changes and Instructions for Conduct of Post-order Custody Review (Aug. 6, 1999), *reprinted in* 76 Interpreter Releases 428, 717, 1300 (1999). Two months before we heard arguments in this case, the procedures outlined in the INS internal memoranda were published as an official rule. Detention of Aliens Ordered Removed, 65 Fed. Reg. 80,281 (Dec. 21, 2000) (codified at 8 C.F.R. § 241.4).

While these procedures do require notice to the noncitizen and allow the submission of written information, they are insufficient to protect noncitizens’ interest to be free of detention. Imprisoned individuals do not have the right to appear in person and present evidence on their own behalf. *See* 8 C.F.R. § 241.4(h)(1) (“[T]he district director *may in his or her discretion* schedule a personal or telephonic interview with the [noncitizen] as part of this custody determination.”) (emphasis added). They do not receive the evidence on which the Government relies, so they are unable to challenge it or cross-examine the official furnishing the information. *See* 8 C.F.R. § 241.4(h)(2) (allowing the noncitizen to “submit information in writing” in support of release but granting no right to review and comment on evidence supplied by immigration officials). They are in custody and rarely, if ever, represented by counsel. *See* 8 C.F.R. § 241.4(h)(2) (allowing assistance by a representative at no expense to the government); *see also* Human Rights Watch, *Locked Away*, *supra*, at note 244 and accompanying text (“[O]nly about 11 percent of all detained immigrants are represented by legal counsel in immigration court”). Even fewer noncitizens in post-removal detention review proceedings have lawyers, although the regulation permits assistance by a representative at no expense to the government. 8 C.F.R. § 241.4(h)(2). The decision on continued custody is made by a single immigration official, not a neutral party. *See* 8 C.F.R. § 241.4(h)(3)–(5) (authorizing only the district director or a staff delegate to decide whether to extend custody). In light of the magnitude of the liberty interest involved and the likelihood of

errors in situations that lack two-sided testing of evidence, the regulations do not aid the statute to pass constitutional muster.

In addition to the facial deficiencies of these regulations, there is evidence in the record that government officials consistently fail to comply with their own agency's custody review procedures, make biased and superficial decisions, and cause delay at every stage. For example, although the removal-detention period lasts only ninety days, more than six months passed after Ma received his final order of removal before the Government contacted the Cambodian Government. *Ma v. Reno*, 208 F.3d 815, 819 (9th Cir. 2000). The Government also failed to provide a custody review within ninety days, as required by 8 C.F.R. § 241.4(h)(1). *Id.* at 819 n.5. When Ma applied to be released from detention, the Government sent him a form letter denying his request without stating any reasons, as required by 8 C.F.R. § 241.4(d). *Id.* at 820. Though it lacked explanation for the denial, the form letter specified that there was no ability to appeal the decision. *Id.* at 820. For additional instances, see CLINIC Br., *supra*, 6–10 (describing that the INS took more than three years to review the custody status of a Vietnamese citizen ordered removed from the United States and provided detained noncitizens less than fifteen days notice of a review of continued detention). When a person's liberty is at stake, these errors are troubling. When they are systemic, they raise grave constitutional concerns.

The two cases before us today involve noncitizens whose removal from the United States is unlikely, if not impossible. The Constitution requires that these noncitizens and others similarly situated must have access to fair hearing procedures in which they can raise the implausibility of their removal and seek release until circumstances change permitting the Government to carry out the removals. If they are correct that removal is unlikely, there is no need to consider additional factors; the entire justification for removal detention is eliminated for noncitizens who can never be removed.

Justice Breyer's statutory construction would lead to periodic six-month review by immigration officials of the need for continued detention. We appreciate the concerns that motivate Justice Breyer, but we do not agree that the text of the statute lends itself to the cure he proposes. Moreover, we must emphasize that the current regulations already require periodic review, yet thousands whose removal is unlikely or impossible remain incarcerated indefinitely. For these reasons, we conclude that Justice Breyer's reading of 8 U.S.C. § 1231(a)(6) unacceptably shelters Congress from its constitutional responsibility to revise the statute to ensure that the Government does not impose long-term civil incarceration on noncitizens. The Government has proven to be untrustworthy in the current detention regime; we have no confidence that there will be meaningful protection of the constitutional rights of noncitizens in post-removal detention without a comprehensive revision of the custody review process. As one report states:

The legislation imposing mandatory detention has caused immense—and unnecessary—suffering. But even in those areas where the INS retains the discretion to release individuals, it has failed to do so in a consistent or generous manner. It has been particularly remiss in its failure to explore alternatives to detention for vulnerable detainees and others who, particularly with appropriate supervision, would represent neither a flight risk or a danger to the community. It

has also failed to explore cost-effective, alternative forms of detention for those subject to mandatory detention.

Donald Kerwin, Mark von Sternberg, Juan Osuna, Mary McClenahan, Alicia Triche, Helen Morris & Tom Shea, *The Needless Detention of Immigrants in the United States: Why Are We Locking Up Asylum-Seekers, Children, Stateless Persons, Long-Term Permanent Residents, and Petty Offenders?* 32–33 (2000).

Accordingly, we believe that the ball is in Congress' court to devise an appropriate framework to prevent detention past the 90-day removal period when there is no prospect of removal in the reasonably foreseeable future. Congress might choose to include a clear articulation of the standard and burden of proof demanded of the Government for detentions longer than the 90-day removal period. Congress could establish meaningful intervals for review to assess the likelihood of removal in the foreseeable future. Congress might require written decisions explaining the reasons for extending detention and codify the right to federal court review of the extensions of detention. Congress could require supervised release at the end of the 90-day removal or other specified period if removal does not occur. Or Congress might develop an altogether different statutory scheme to avoid the constitutional challenges that indefinite detention triggers. In our system of government, it is up to Congress to design the immigration removal system consistent with due process.

2

The statute in question, 8 U.S.C. § 1231(a)(6), expressly authorizes indefinite post-removal-period detention when the Attorney General determines there is a risk of flight or a risk to the community. The Constitution demands that the Government must assess these risk factors in a fair procedure.

It is useful to examine each risk factor separately and to further distinguish between immigration detainees whom the Government cannot remove and those it has the ability to remove. We agree with Justice Breyer that the risk of flight evaporates when removal is impossible. *Ante*, at 690. In those circumstances we conclude that noncitizens should no longer be detained at all. Consigning Zadvydas and Ma to indefinite detention in these circumstances has no regulatory purpose, which makes continued detention simply and unacceptably punitive. The statute provides post-release conditions of supervision that permit the Government to locate individuals if removal becomes possible. 8 U.S.C. § 1231(a)(3).

In contrast, for noncitizens whose removability is reasonably foreseeable even though it may take longer than ninety days to accomplish, flight risk may be a relevant consideration. In these situations, there must be individualized assessments of pertinent evidence. Noncitizens must have notice of the basis for the Government's contention that the noncitizen is unlikely to comply with the terms of release from custody, a meaningful opportunity to present evidence and to challenge the Government's evidence, an impartial decisionmaker whose conclusion is based on the record, and a written explanation of the decision.

Even if flight risk were relevant to their continued detention, the facts in the record show that Zadvydas and Ma were unlikely to flee. Turning first to Zadvydas, we note that he was held in

detention more than three years after the expiration of the 90-day removal period. *Zadvydas v. Caplinger*, 986 F. Supp. 1011, 1015 n.2 (E.D. La. 1997). During the years of post-removal detention, Zadvydas assisted immigration officials in their removal efforts. When these efforts were unavailing, Zadvydas sought release to live with his wife in Houston, Texas. His brother-in-law agreed to sponsor him. Zadvydas agreed to post a cash bond, to obtain employment and health insurance, and to report to immigration officials every month.

Kim Ho Ma was also a compliant detainee. After interviewing him and gathering letters from family members and friends, an immigration officer concluded that Ma had a “very supportive” family. The report noted that Ma’s older brother, who owned his own business, promised to employ Ma, and that Ma was in frequent communication with his younger brother in an effort to prevent him from making the mistakes that Ma had made. Further, Ma would live in his parents’ home and assist his handicapped elderly father. *Ma v. Reno*, 208 F.3d 815, 819–820 (9th Cir. 2000).

Thus, both Zadvydas and Ma have strong community and family ties that would minimize a risk of flight. It is no surprise to learn that they have complied with the conditions of release imposed by the courts that granted their petitions for habeas corpus.

The other statutory factor that justifies post-removal-period detention is risk to the community. In dissent, Justice Kennedy states that the public safety rationale justified continued detention in the cases before us. Justice Kennedy does not identify any evidence of individualized determinations that Zadvydas and Ma would present future public safety risks. Rather his conclusion appears to be based solely on the fact that Zadvydas and Ma each had been convicted of a crime in prior state proceedings. Justice Kennedy’s perspective would transform every criminal conviction, no matter the particularized circumstances, into a permanent barrier to release from immigration detention. It would fly in the face of the trained and informed prison officials who made individualized decisions to release Zadvydas and Ma based on their good behavior before they had served their full sentences. More generally, it would effectively make a nullity of the “community risk” portion of 8 U.S.C. § 1231(a)(6). If prior convictions are a conclusive barrier to release, there would be no need to assess their post-removal-period detention as the statute contemplates.

The great majority of individuals in post-removal-period detention have removal orders based on a criminal conviction. Zadvydas and Ma each faced INS incarceration after they completed their criminal sentences. It is important to note, however, that many individuals in extended post-removal-period detention have never spent any time in custody because their criminal sentences did not include imprisonment. Further, the post-removal-period detention system also includes noncitizens ordered removed solely for violating their nonimmigrant status conditions. The variety of circumstances, noncriminal as well as criminal, that can land a noncitizen in post-removal-period detention is evidence of the widespread punishment this extended incarceration imposes.

We reject Justice Kennedy’s perspective that all individuals with criminal convictions constitute a risk to the community. As we analyze the community risk factor set forth in 8 U.S.C. § 1231(a)(6), we again distinguish between noncitizens the Government cannot deport and those it reasonably believes it can remove after some further weeks or months. With regard to the first

category, we believe that the Government must release from custody noncitizens whom the Government cannot deport. The purpose of the statute, and the purpose of the post-removal-period detention—to carry out the deportation—has evaporated. Therefore, the Government no longer has a legitimate reason to continue the removal detention, even of people with criminal records. Central to our reasoning is our understanding that Congress authorized post-removal-period detention in order to carry out removals, not for other reasons, such as punishment, or protection against risks to the community.

Even if executive determinations of community risk were sufficient to justify continued civil custody of stateless or otherwise unremovable noncitizens, a view we condemn in the strongest terms, there is no evidence that the Government meaningfully examined the risk of danger actually posed by either Zadvydas or Ma. Zadvydas's most recent conviction was for a non-violent controlled substance offense. Ma's single conviction was for a violent crime, but his youth and evidence of his subsequent behavior suggest his rehabilitation was underway. Accordingly, the procedural deficiencies in their cases undermine their continued incarceration.

According to the record, neither Zadvydas nor Ma had a hearing at which he could present evidence that he was not a risk to public safety or counter any evidence the Government proffered to the contrary. Moreover, it appears that the Government's evidence of risk to the community in both their cases was the mere fact that each of them had been convicted of a crime. The view that past conviction alone is sufficient to establish future dangerousness has no support in our jurisprudence. *See Salerno*, 481 U.S. at 745. Ongoing detention based solely on a government official's determination of future hypothetical danger without the additional safeguards of a contested proceeding before a neutral adjudicator is nothing more than constitutionally disfavored preventive detention.

The second category of individuals, noncitizens whom the Government reasonably believes it can remove, are in a different position. In their cases, the purpose of post-removal-period detention has not vanished, and the Government has a legitimate interest in effectuating their removal. Continued detention may still play a role related to removal. At the same time, however, their constitutionally protected individual liberty is constrained, and Congress has set forth in 8 U.S.C. § 1231(a)(6) some grounds for their release pending removal. With so much at stake, they are entitled to individualized assessments of their risk to the community in proceedings with adequate notice, a meaningful opportunity to be heard, and an impartial decisionmaker.

For the foregoing reasons, we conclude that the Due Process Clause requires fair procedures for decisions concerning continued detention pursuant to 8 U.S.C. § 1231(a)(6). Decisions about flight risks or public safety risks involve individualized assessments that require attention to context and nuance. Assessments about the realistic possibility of removing noncitizens to another nation also demand scrutiny of sensitive information relevant to the specific individual and the specific country. As the two cases before us have demonstrated, the liberty interests of noncitizens to be free from physical constraint is jeopardized by inadequate decisionmaking. We call on Congress to devise fair procedures that guard against indefinite detention of stateless and other noncitizens whom the Government cannot remove.

IV

Overruling Shaughnessy v. United States ex rel. Mezei

In his dissent, Justice Scalia agrees with the Government's argument that once noncitizens, including lawful permanent residents, receive a final order of removal, they lose all constitutional rights. He equates them with noncitizens outside the United States seeking permission to enter. He therefore concludes that Zadvydas and Ma, though physically present in the United States, have no rights under the U.S. Constitution.

This cannot be. As long as Zadvydas and Ma are physically within the United States and under control of U.S. officials, they are protected by the U.S. Constitution. Our longstanding precedents have made it clear that constitutional protections extend to noncitizens as well as citizens. *Yick Wo v. Hopkins*, 118 U.S. 356, 369 (1886). The Constitutional protections extend to noncitizens with removal orders, who cannot be forced by executive officials to do hard labor while they await removal. *Wong Wing v. United States*, 168 U.S. 228, 237 (1896).

Surely the Constitution prevents government officials from torturing noncitizens while they await removal, *see* Scalia, J., dissenting, *post*, at 704, from interfering with noncitizens' rights to practice their religion during post-removal detention, and from denying medical care to noncitizens in immigration detention. The entry of a removal order against a noncitizen inside the United States does not transport the noncitizen to a constitution-free zone.

The Government supports its far-reaching argument with the infamous opinion in *Shaughnessy v. United States ex rel. Mezei*, 345 U.S. 206 (1953). In dissent, Justices Scalia and Thomas agree. *Post*, at 703–705. *Mezei* is distinguishable because Ignatz Mezei was applying for admission into the United States while Zadvydas and Ma are currently residing within our country. The Government's argument, however, has a more fundamental flaw. *Mezei* was wrong when it was decided and is outmoded and indefensible now.

In *Mezei*, the Court reviewed a challenge to the detention on Ellis Island of a returning lawful permanent resident of the United States. The Court acknowledged that noncitizens “who have once passed through our gates, even illegally, may be expelled only after proceedings conforming to traditional standards of fairness encompassed in due process of law.” *Mezei*, 345 U.S. at 212. Nonetheless, although Mezei was detained by U.S. officials for close to two years on an island in New York Harbor, the Court ruled that he was not entitled to due process. Ignoring the reality of long-term incarceration at the hands of U.S. government employees on U.S. territory, the Court determined that Mezei should be viewed as if he were still on board a private vessel in international waters: “[H]arborage at Ellis Island is not an entry into the United States.” *Id.* at 213.

This is the origin of the “entry fiction” doctrine, in which U.S. immigration officials acknowledge the physical presence of an individual within the territory of the United States but deny that the noncitizen has “entered” the United States and, thereby, deny the noncitizen the protection of the Due Process Clause. If this tortured logic were not so pernicious, it would be risible. The United States does not hesitate to enforce its laws on Ellis Island, nestled in New York Harbor. The U.S. Constitution must apply there too.

The *Mezei* opinion, with its fiction that presence on Ellis Island is *not* actual presence on U.S. territory, is a relic of the Cold War obsession with national security and reflects inadequate appreciation of current due process requirements. The perspectives of *Goldberg v. Kelly*, 397 U.S. 254, 269 (1970), and *Mathews v. Eldridge*, 424 U.S. 319, 335 (1976), had not yet become part of the fabric of our law.

Furthermore, subsequent developments in U.S. immigration law undermine *Mezei*. For example, thirty years after *Mezei*, we ruled that the U.S. Constitution requires the Government to provide fair hearings to lawful permanent residents who have left the United States when they attempt to reenter. Even when stopped at the border, “continuously present permanent resident [noncitizens have] a right to due process.” *Landon v. Plasencia*, 459 U.S. 21, 33–35 (1983) (applying *Mathews v. Eldridge* due process balancing). As the *Plasencia* opinion held, noncitizens who seek reentry to the United States have weighty interests at stake. They not only may “lose the right to ‘stay and live and work in this land of freedom’” but also “lose the right to rejoin [their] immediate family, a right that ranks high among the interests of the individual.” 459 U.S. at 34 (quoting *Bridges v. Wixon*, 326 U.S. 135, 154 (1945)). Accordingly, the *Plasencia* court concluded that the Due Process Clause protects lawful permanent residents as they reenter the United States and commands that the Government provide fair procedures, as delineated by the *Mathews v. Eldridge* framework. 459 U.S. at 32–35.

It is no longer true that “[w]hatever the procedure authorized by Congress is, it is due process as far as [a noncitizen] denied entry is concerned.” *Mezei*, 345 U.S. at 212 (quoting *United States ex rel. Knauff v. Shaughnessy*, 338 U.S. 537, 544 (1950)). We would formally repudiate that line of reasoning and overrule *Shaughnessy v. United States ex rel. Mezei*. It is time for the Court to put *Mezei* to rest in all removal cases, especially those involving lawful permanent residents. We look forward to the day when the majority of this Court joins us.

V

The overuse of immigration detention

This case concerns the constitutionality of a statute that effectively punishes large numbers of people held in civil detention. It is part of a deeper, even more worrisome, growing development in our immigration system: the overuse of detention of noncitizens to effectuate immigration laws. *See, e.g.*, 8 U.S.C. § 1225(b) (requiring detention of applicants for admission who appear subject to removal); 8 U.S.C. § 1226(a) (authorizing detention of noncitizens pending removal proceedings); 8 U.S.C. § 1226(c) (requiring detention of noncitizens removable for specified criminal activity or terrorist-related grounds after release from criminal incarceration); *see also* Kerwin et al., *supra*, at 32–33. Recent immigration legislation mandates detention at multiple junctures, affecting not only lawful permanent residents awaiting removal hearings and noncitizens awaiting deportation from the United States, but also many thousands of asylum seekers seeking entry at the border. *See* 8 U.S.C. § 1225(b)(1)(B)(iii)(IV); Amnesty International, *Lost in the Labyrinth: Detention of Asylum-Seekers* 2–3 (1999).

We recognize that the Government’s interest in removal is legitimate, but we do not think it is greater than its interest in bringing criminal defendants to trial. Yet, in the criminal setting,

mandatory pretrial detention is unusual, if not exceptional. When mandatory detention occurs in criminal proceedings, the accompanying procedures are demanding and highly individualized. *See, e.g.*, 18 U.S.C. § 3142. Moreover, in criminal prosecutions, there are speedy trial protections that impose effective temporal limits on incarceration of those not convicted of a crime.

We are gravely concerned that our immigration law increasingly incorporates features of criminal law. One instance is the expansion of immigration detention, generally, and post-removal detention, in particular. As today's cases powerfully reveal, immigration law has adopted attributes of the criminal legal system without the robust procedural protections the Constitution guarantees. Our apprehension is heightened as we increasingly encounter stories of large numbers of noncitizens who have been detained for immigration violations. Their numbers are outgrowing the federal immigration facilities. One serious consequence is that many noncitizens held for civil immigration violations have been placed throughout the country in state, local, and private custody at considerable cost. Peter H. Schuck, *I.N.S. Detention and Removal: A "White Paper,"* 11 Geo. Immigr. L.J. 667, 672 (1996). These non-federal facilities, located throughout the country, only recently became subject to federal detention standards, 2000 National Detention Standards for Non-Dedicated Facilities, but their conditions of confinement have sometimes been appalling. *See* Margaret H. Taylor, *Detained Aliens Challenging Conditions of Confinement and the Porous Border of the Plenary Power Doctrine*, 22 Hastings Const. L.Q. 1087, 1111–1125 (1995); *see also* Human Rights Watch, *Locked Away*, *supra*, at notes 130–181 and accompanying text.

While the increasing reliance on detention in many facets of our immigration system is not directly before us today, we take the opportunity to draw attention to this growing phenomenon that extends into the state, local, and private sectors with little clear regulation or oversight. We predict that the substantial expansion of immigration detention, accompanied by the lack of adequate oversight and safeguards regarding the conditions of these facilities and the treatment of detainees, will lead to serious inequity and abuse. Heavy dependence on detention will encourage the flourishing of a non-transparent administrative system. When noncitizens are warehoused far away from their families and communities, immigration detention facilities will lack the “disinfectant” of sunlight. *Cf.* Louis Brandeis, *Other Peoples' Money and How the Bankers Use It*, ch. 5 (1914) (“What Publicity Can Do”). This bodes ill for the future of the immigration system in the United States.

Justice Breyer's opinion takes an important, albeit limited, step toward imposing limits on immigration detention. But, in the name of constitutional avoidance, it misses the opportunity to redress the incapacitating and punitive effects of 8 U.S.C. § 1231(a)(6) on its face and as applied by the Government. The overreliance on post-removal-period detention revealed by the record in this case may be the canary in the coal mine warning us of the greater problems that the overuse of immigration detention may generate.

The Due Process Clause of the United States Constitution protects noncitizens while they are in the United States. Even if noncitizens have lost their right to lawful permanent residence, they retain their fundamental liberty interest in remaining free from custody. We conclude that it is unconstitutional for immigration officials to imprison indefinitely noncitizens ordered removed

whom the Government is not able remove. Nor can the Government continue to detain other noncitizens in the post-removal detention period unless fair procedures safeguard the release determinations.

We join Justice Breyer's opinion to vacate both decisions below and remand both cases for further proceeding.